New Filing -- NDCA 3:26-cv-07504 Ngehsi Newanforbi v. Smith

7 messages

Brendan Ngwa Nforbi <bnn.cdl@gmail.com> Wed, Jul 22 at 3:20 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, Bryan Malone <bryan@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>, SLB eservice <slb-eservice@sims-law.net>

Counsel,

Please see attached courtesy copies of the following new filing in the NDCA: 3:26-cv-07504

Feel free to reach out if you have any questions.

Thank you,

Brendan Ngehsi Newanforbi
Complaint_Newanforbi_v_Smith_NDCA.pdf, Declaration ISO Motion PO NDCA and Exhibit A.pdf, Motion Protective Order NDCA.pdf, Proposed Protective Order NDCA.pdf, Ngehsi Newanforbi v. Smith et al (3_26-cv-07504), California Northern District Court.pdf

Blaze Van Dine <blaze@sims-law.net> Fri, Jul 24 at 10:32 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>

Good morning Mr. Newanforbi,

I noticed in your proposed complaint to be filed in the Northern District, you relied on information protected by the protective order entered by the San Joaquin County Superior Court (a copy of the order is attached). That protective order covers not just documents but "information" found in the documents designated confidential. (See Protective Order Paragraph I.A.) Information designated confidential may only be used in the San Joaquin County Superior Court action and in *Newanforbi v. Derrick, et al.*, No. 2:26-cv-0004 DJC JDP PS (E.D. Cal.) The Court's order specially advised the parties: "Confidential Information may not be disclosed to, or discussed with, any person or entity" not specifically authorized by the order. (See Protective Order Paragraph IV.C.)

Paragraph VI. "**USE OF CONFIDENTIAL INFORMATION**" further explained:

VI. USE OF CONFIDENTIAL INFORMATION

All Confidential Information (other than Information that is publicly available) must be used by the party or parties to whom the Confidential Information is produced solely for the purpose of this Litigation and may not be used for any other purpose whatsoever, other than use in the related action *Newanforbi v. Derrick et al.*, United States District Court, Eastern District of California, Case No. 2:26-cv-00004 DJC JDP PS.

I assume this was inadvertent and you will correct it going forward. If I'm mistaken, you disagree, or you have questions, we need to meet and confer. To be clear, my clients' documents or the information contained in those documents designated CONFIDENTIAL may not be used for any purpose other than the San Joquin Superior Court action and Case No. 2:26-cv-0004 DJC JSP PS. Violation of the San Joaquin County Superior Court's order may result in sanctions.

Have a great weekend.

Blaze Van Dine

Attorney at Law

1478 Stone Point Drive, Suite 450
Roseville, CA 95661
(916) 797-8881 F: (916) 253-1544
www.sims-law.net

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Sims, Lawrence & Broghammer
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From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Wednesday, July 22, 2026 3:20 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>; Bryan Malone <bryan@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>; June Meinecke <june@sims-law.net>; Amber Krausse <Amber@sims-law.net>; SLB eservice <SLB-eservice@sims-law.net>

Subject: New Filing -- NDCA 3:26-cv-07504 Ngehsi Newanforbi v. Smith

[Quoted text hidden]
Stipulated Protective Order-END (062326).pdf

Brendan Ngwa Nforbi <bnn.cdl@gmail.com> Fri, Jul 24 at 11:05 AM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>

Mr. Van Dine,

Thank you for your email of July 24, 2026.

The Motion for Protective Order that was filed contemporaneously with the Complaint in 3:26-cv-07504 was submitted precisely to address the restrictive language in the San Joaquin County Protective Order and to seek this Court's authorization to use the materials under equivalent protections. As stated in the supporting Declaration, the Complaint does not attach the confidential documents themselves and is limited to factual allegations.

I am available to meet and confer regarding the pending motion and any interim measures pending the Court's ruling. Please let me know your availability for a short call, or feel free to propose a written exchange if you prefer.

Thank you.

Brendan Ngehsi Newanforbi

[Quoted text hidden]

Blaze Van Dine <blaze@sims-law.net> Fri, Jul 24 at 11:14 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>

Thank you Mr. Newanforbi

How about Tuesday at 2pm?

Blaze Van Dine
Attorney at Law

1478 Stone Point Drive, Suite 450
Roseville, CA 95661
(916) 797-8881 F: (916) 253-1544
www.sims-law.net

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From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Friday, July 24, 2026 11:05 AM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: Kim Schmitt <kschmitt@sims-law.net>; June Meinecke <june@sims-law.net>
Subject: Re: New Filing -- NDCA 3:26-cv-07504 Ngehsi Newanforbi v. Smith

[Quoted text hidden]

Brendan Ngwa Nforbi <bnn.cdl@gmail.com> Fri, Jul 24 at 11:40 AM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>

Thank you Mr. Van Dine.

Tuesday at 2:00 p.m. works. Please let me know whether you prefer a phone call or video conference, and who else will be on the call.

Regards,

Brendan Ngehsi Newanforbi

[Quoted text hidden]

Blaze Van Dine <blaze@sims-law.net> Tue, Jul 28 at 4:41 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>

Brednan,

Thank you for taking the time to meet with me today. This email is to memorialize our conversation. We agreed that before you filed any further documents reflecting information found in documents designated confidential we would meet and confer. We also agreed to enter into a stipulated protective order in your newly filed Northern District action. If you disagree with my recollection, please let me know.

Blaze Van Dine
Attorney at Law

1478 Stone Point Drive, Suite 450
Roseville, CA 95661
(916) 797-8881 F: (916) 253-1544
www.sims-law.net

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Sims, Lawrence & Broghammer
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From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Friday, July 24, 2026 11:40 AM
[Quoted text hidden]

Brendan Ngwa Nforbi <bnn.cdl@gmail.com> Tue, Jul 28 at 5:08 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>

Blaze,

Thank you for memorializing our conversation. I confirm that we agreed to:

1. Meet and confer before I file any further documents reflecting information found in documents designated confidential; and
2. Enter into a stipulated protective order in the Northern District action.

Please feel free to circulate a draft stipulated protective order whenever convenient for you. I am happy to review and discuss any proposed modifications.

Thank you for the productive discussion.

Best regards,

Brendan

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